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3 June 2026

The Honourable Speaker of the National Assembly

Parliament of the Republic of South Africa

PO Box 15, Cape Town, 8000

By Email: speaker@parliament.gov.za

RE: REPLY TO AFROCENTRIC'S LETTER OF 3 JUNE 2026 — SETTING THE RECORD STRAIGHT — CONFIRMATION THAT PARLIAMENTARY SUBMISSION CONCERNS GOVERNANCE AND PUBLIC POLICY, NOT PRIVATE LITIGATION — ACTIVE DANGER TO LIFE REMAINS

Active Cases: 2026-086906 (HC) | 2026-083299 (LC) | WECT23564-25 | WECT24486-25

A — OPENING STATEMENT

Honourable Speaker,

I write in response to the letter addressed to your Office by Deneys Reitz Inc. (attorneys for AfroCentric Investment Corporation) dated 3 June 2026, a copy of which was simultaneously sent to me. I am grateful that your Office acknowledged receipt of my submission on 2 June 2026. I write to ensure that the narrative now placed before you by a well-resourced corporate legal team does not obscure what my submission actually is, what it actually asks, and why my life is in immediate danger while these letters are being exchanged.

I address each of Deneys' arguments directly below. I then provide the clearest possible framing of the five questions my parliamentary submission actually places before this Office — none of which are questions for a court, and all of which fall squarely within Parliament's constitutional oversight mandate.

B — ADDRESSING THE 'PENDING LITIGATION' ARGUMENT

B.1 What Deneys Told Your Office

Deneys' letter of 3 June 2026 draws your attention to Parliament's guideline that a petition 'may not be accepted where it concerns a matter pending in a court of law.' It then invites your Office to conclude that my submission is such a petition and should therefore be declined.

B.2 Why That Characterisation is Wrong in Law and Fact

With respect, this argument misreads both Parliament's guideline and the nature of my submission. Three points are decisive:

B.2.1. THE GUIDELINE APPLIES TO PETITIONS SEEKING RELIEF FROM PARLIAMENT ON A MATTER A COURT IS DECIDING. It does not bar Parliament from exercising its constitutional oversight function over the governance failures and systemic policy failures that gave rise to the litigation. The distinction is fundamental. I am not asking Parliament to decide my labour dispute. I am asking Parliament to investigate why eleven statutory institutions — including Chapter 9 bodies — failed to perform their public mandates, and why a Priority 1 patient safety risk affecting 1.9 million GEMS beneficiaries remains unremediated.

B.2.2. SECTION 55(2) OF THE CONSTITUTION REQUIRES PARLIAMENT TO PROVIDE OVERSIGHT over the exercise of national executive authority. Section 56 empowers parliamentary committees to summon any person and require the production of any document. These powers exist precisely because some matters — specifically, systemic regulatory failure and governance breakdown — cannot be adequately addressed by private litigation between two parties. No court in the pending proceedings has jurisdiction to compel the CMS, SANC, DEL, B-BBEE Commission, SAPS, or SAHRC to account for their conduct. Only Parliament can do that.

B.2.3. THE SUBJECT MATTER OF MY PARLIAMENTARY SUBMISSION IS CATEGORICALLY DISTINCT from the subject matter of the pending court proceedings. The court proceedings concern my employment relationship with AfroCentric/Medscheme. My parliamentary submission concerns: (a) a systemic integration gap at a government health scheme administrator affecting 1.9 million beneficiaries; (b) the cascade failure of eleven regulatory and statutory bodies; (c) B-BBEE fronting within the healthcare administration sector; (d) the adequacy of the Protected Disclosures Act; and (e) the tension between POPIA and PDA Section 9(2)(a). None of these matters are before any court. All of them are matters of national governance policy.

⚠ The test is not whether the same person is a litigant in court. The test is whether the subject matter of the parliamentary submission concerns a question a court is deciding. It does not. A court will decide whether I was constructively dismissed. Parliament is being asked to decide why the entire regulatory architecture failed to prevent a whistleblower from being reduced to destitution, and why a Priority 1 clinical risk affecting 1.9 million government employees remains unaddressed.

B.3 The Rebuttal Table: Deneys' Claims Versus the Record

DENEYS CLAIM TO SPEAKER	THE DOCUMENTED TRUTH
<i>'The matters raised are the subject of active court proceedings' — implying Parliament should step aside.</i>	Five of the seven matters in my parliamentary submission (regulatory cascade, Gexus-DMS patient safety, B-BBEE fronting, PDA reform, POPIA/PDA tension) are NOT before any court. Parliament is the only forum with jurisdiction.
<i>'Not a single regulatory body has made a finding in his favour.'</i>	Correct — and this is precisely the point. Eleven bodies failed. That systemic failure IS the parliamentary question. The absence of findings is evidence of

	regulatory capture, not evidence that the allegations are without merit.
<i>'He resigned voluntarily on 12 December 2025.'</i>	My formal notice of resignation is titled 'Notice of Resignation Due to Automatically Unfair Constructive Dismissal.' This is before the Labour Court. Deneys states the opposite to Parliament as settled fact, under no oath, in a letter your Office has no mechanism to interrogate.
<i>'The interdict does not prevent him from pursuing Labour Court claims or co-operating with regulatory bodies.'</i>	The interdict restrains me from filing regulatory complaints with JSE, CIPC, and IRBA on 'unsubstantiated' allegations — i.e., it has already been used to define my disclosures as unprotected. It was also extended to March 2027, blocking my UIF access for a further 9 months while I am homeless.
<i>'The UIF matter is entirely unrelated to the interdict.'</i>	The gag order extension to March 2027 was a direct cause of the DEL's refusal to enforce a UI-19 correction while the matter is 'before the courts.' The connection between the interdict and my UIF destitution is direct and documented.

C — THE R7,307,642.72 FIGURE: RESTITUTION, NOT EXTORTION

C.1 What Deneys Told Your Office

Deneys' letter characterises the financial figure of R7,307,642.72 as a demand made 'by threats' and describes my conduct as an attempt to 'extort' AfroCentric. This characterisation has now been placed before your Office and, if left unanswered, will colour every subsequent consideration of my submission.

C.2 The Structured Breakdown of the Figure

The figure of R7,307,642.72 is not a ransom. It is a forensically calculated schedule of documented occupational losses. Every component is traceable to a statutory provision and a primary source document. The calculation was provided to AfroCentric before any court filing. I reproduce the structure here for your Office's consideration:

Component	Basis and Document
Automatically unfair constructive dismissal — maximum compensation	LRA s194(3): 24 months × R42,796.13 CTC = R1,027,107.12 (RES1, PS2)
Unlawful salary deduction — principal + 200% penalty	BCEA s34 + penalty: R14,811.77 × 3 = R44,435.31 (PS2, LIE1, POL1)

Constructive dismissal income loss — 6 months post-resignation	R42,796.13 × 6 = R256,776.78 (PS2, EXIT2-4)
Gender identity harassment — EEA s6 maximum	R500,000 (FG1, ULP1, TYP1)
Disability discrimination — EEA s15 maximum	R500,000 (EM1, AMR1, OA1)
Career loss — nursing registration + CPUT PGDip + 3-year earnings	Actuarially calculated based on NQF 8 specialist rate (CERT1, SANC deregistration)
Constitutional damages — dignity, equality, access to courts	s10, s9, s34 violations documented across 28 PROC-classified documents
Post-employment detriment — false UI-19, withheld documents	PDA s3 damages (EXIT3, EXIT4, CERT1)

Every lawyer in the Republic of South Africa sends letters of demand quantifying damages before litigation. The demand is not conditioned on silence. It is conditioned on settlement — a legally recognised alternative to adjudication. The employer's legal team knows this. Characterising a structured damages schedule as 'extortion' before Parliament is a calculated attempt to criminalise the act of quantifying what was taken from me.

⚠ The distinction Parliament must hold is this: extortion demands money in exchange for not doing something unlawful. A damages schedule demands money in exchange for not pursuing legitimate legal remedies. The latter is a letter of demand. It is sent millions of times every year by law firms across South Africa. It is what Deney's themselves do every day.

D — THE FIVE QUESTIONS MY SUBMISSION ACTUALLY PLACES BEFORE PARLIAMENT

Stripped of the procedural smoke deployed by Deney's letter, my parliamentary submission asks Parliament five questions. None of these is a question for a Labour Court or a High Court. All of them are questions about the performance of public institutions and the adequacy of public law:

Question 1: Patient Safety (Portfolio Committee on Health)

An internal Root Cause Analysis at Medscheme Holdings — the administrator for the Government Employees Medical Scheme — confirms a structural integration gap between the Gexus and DMS systems. This gap generates false non-adherence letters to compliant, elderly GEMS beneficiaries, corrupts clinical data, and inflates actuarial risk loading. The Board received a Priority 1 Material Risk Report on 9 December 2025 and suppressed it. All 1.9 million GEMS members are structurally at risk. The CMS was notified and declined jurisdiction twice.

The question for Parliament: Is the Minister of Health aware that the Gexus-DMS integration gap remains unremediated? Will Parliament direct the CMS to investigate under MSA Sections 1, 7, 44, 47, and 58 — as it did in the Discovery Health precedent of January 2026?

Question 2: Regulatory Cascade Failure (Portfolio Committee on Employment & Labour + Justice)

Eleven statutory bodies were formally notified of documented violations. Nine failed to act — deflecting, declining, or remaining silent. The CCMA Commissioner pre-judged the PDA claim before hearing evidence. The DEL refused to enforce the 25% BCEA statutory cap on salary deductions despite the employer acknowledging the cap in writing. SAPS Delft unlawfully refused to open a criminal case — audio-recorded. The SAHRC, a Chapter 9 institution, acknowledged the severity of the matter and then went silent.

The question for Parliament: Does the 'regulatory carousel' pattern documented in this submission represent a systemic access to justice failure that requires legislative intervention? Should Parliament establish a single whistleblower protection authority to receive disclosures and apply for relief on behalf of whistleblowers who are being destroyed by the carousel?

Question 3: B-BBEE Fronting (Portfolio Committee on Trade, Industry & Competition)

I was recruited as 'Specialist: Care Manager' (NQF Level 8) and contracted as 'Care Coordinator' (Grade B4M1). The employer's own HR Business Partner admitted in writing that the naming convention was 'not applied to your department.' The Certificate of Service suppresses the higher title. The B-BBEE Commission declined to investigate despite written evidence and refused to use its Section 13K subpoena powers to obtain the Naming Convention Teams recording.

The question for Parliament: Does title suppression of an NQF Level 8 professional for B-BBEE scorecard benefit — while denying that person the corresponding economic entitlement — constitute fronting under Section 1(c) of the B-BBEE Act? Will Parliament direct the Commission to reopen Case 5/02/2026 and use its Section 13K subpoena powers?

Question 4: PDA Reform — The 'Induced Destitution' Loophole (Portfolio Committee on Justice)

The Protected Disclosures Act was enacted to protect whistleblowers. It does not currently provide for interim financial relief while proceedings are pending. It does not create a single authority to receive disclosures and monitor regulatory responses. It does not impose criminal penalties on regulatory bodies that act in bad faith. The result — documented across this entire submission — is that a whistleblower can be legally destroyed before any court reaches a finding on the merits.

The question for Parliament: Should the PDA be amended to: (a) provide a right to interim hardship relief on a prima facie case; (b) establish a single whistleblower authority; and (c) impose criminal penalties on institutions that act in bad faith? Does the current tension between POPIA and PDA Section 9(2)(a) — which has allowed a corporation to obtain a court order characterising protected disclosures as 'confidential information' — require urgent legislative clarification?

Question 5: SANC Professional Accountability (Portfolio Committee on Health)

SANC deregistered me — a Specialist Registered Nurse — because I could not pay the R870 annual fee. The direct cause of my inability to pay was the employer's unlawful 40.47% salary deduction. SANC simultaneously failed to respond to the formal professional misconduct complaint against Jones and Mashele — both registered nurses under its oversight — filed on 10 February 2026. I cannot practise my profession in 2026. The very body that deregistered me has not investigated the registered nurses whose documented conduct created my destitution.

The question for Parliament: Does the Minister exercise adequate oversight over SANC's complaint-handling timelines? Should Parliament direct SANC to respond to complaint SANC/MEDSCHEME/MATTHEE/20260105 and to report on its deregistration of the complainant — caused directly by a statutory violation it failed to investigate?

E — ACTIVE AND IMMEDIATE DANGER TO LIFE — THIS IS NOT RHETORICAL

Honourable Speaker, I must be direct about my physical circumstances, because the correspondence from Deneys — measured, professional, calibrated — creates the impression of a routine legal dispute between two parties who are both in positions to await the court's determination in due course.

I am not in that position. I document the following not for sympathy, but because these are the direct, proximate consequences of the unlawful conduct I have reported, and because Parliament is being asked to evaluate urgency:

No running water	Since January 2026 — five months. My home has had no running water.
Eviction	Confirmed — four months rental arrears caused directly by the unlawful 40.47% salary deduction of July 2025.
Possessions seized	My personal property has been physically removed by informal creditors acting as loan shark debt security.
Income: zero	I have had no salary since December 2025. My UIF is blocked. My retirement fund of R48,400 has been depleted to survive.
SANC deregistered	I cannot practise as a Specialist Registered Nurse in 2026 — my only professional qualification — because I could not pay R870. That R870 was consumed by an unlawful deduction.
Medication	I cannot consistently afford prescribed psychiatric medication for formally diagnosed severe depression and PTSD.
Psychiatric diagnosis	Dr Jacques Malan, FCPsych(SA) — severe depression and PTSD — occupationally caused. Formal letter delivered to the employer on 16 May 2025. They described this diagnosis as a 'cynical excuse' under oath.
Physical intimidation	Informal creditors who advanced money during the period of financial destitution have physically attended my home to collect on debt. My personal safety is not guaranteed.

⚠ This is not a case in which the Honourable Speaker can defer to the courts and trust that the ordinary machinery of justice will protect the person before it. The ordinary machinery has already failed — documented across eleven institutions. I am before Parliament because every other door has closed. I am writing this letter myself, without legal representation, from a home without running water, while being formally threatened with contempt of court proceedings for exercising my constitutional right to petition this very Office.

"I am not asking Parliament to decide who wins the Labour Court case. I am asking Parliament to ensure I survive long enough to get there."

F — THE GAG ORDER EXTENSION TO MARCH 2027: THE WEAPONISATION OF COURT PROCESS

Deneys' letter states that the extension of the interim interdict to 1 March 2027 was 'necessitated by the fact that the matter could not be heard on the return date on 28 May 2026 because the Third Division was not in a position to accommodate an opposed matter of this nature.'

With respect, this explanation, while procedurally accurate in isolation, omits the following facts which your Office is entitled to know:

- F.1.** On 28 May 2026 — the original return date — I filed my Consolidated Supplementary Answering Affidavit, including a perjury schedule documenting thirteen false statements made under oath by the employer's deponents. The matter was not decided on the merits. It was postponed.
- F.2.** The effect of the postponement to 1 March 2027 is that the interim interdict — including restrictions on regulatory filings — remains in force for a further nine months. During those nine months, I remain without UIF access, without income, without professional registration, and without the ability to approach certain regulatory bodies without risking contempt proceedings.
- F.3.** The court that postponed this matter is not aware that I am homeless and living without running water. No welfare inquiry was conducted. No interim hardship relief was considered. The interdict simply extends — as a matter of administrative scheduling — and my destitution extends with it.
- F.4.** PDA Section 9(2)(a) provides that a protected disclosure overrides confidentiality obligations. The interdict was obtained on POPIA grounds. The tension between POPIA and PDA Section 9(2)(a) means that a corporation can use privacy legislation as a shield against whistleblowing — and obtain a court order to enforce that shield — regardless of the statutory protection Parliament enacted. This requires legislative resolution. It is not a question for the Labour Court or the High Court in the pending proceedings. It is a question for Parliament.

G — WHAT I RESPECTFULLY REQUEST FROM YOUR OFFICE

I make five specific and bounded requests. None of them ask Parliament to intervene in the pending court proceedings. All of them fall within Parliament's constitutional oversight mandate:

- 1.** REFER the Parliamentary Evidence Portfolio to the Portfolio Committees on Health, Employment & Labour, Trade & Industry, and Justice & Constitutional Development for oversight hearings — specifically on the five governance questions identified in Section D of this letter.
- 2.** DIRECT the CMS to report to the Portfolio Committee on Health on: (a) its current position on the Gexus-DMS systemic failure; (b) whether the failure has been remediated; and (c) why jurisdiction was declined twice despite the Discovery Health precedent.
- 3.** DIRECT the DEL to report to the Portfolio Committee on Employment & Labour on: (a) whether a compliance order has been issued regarding the unlawful 40.47% salary deduction; (b) whether the false UI-19 designation has been corrected; and (c) the status of the UIF non-remittance criminal investigation (SAPS CAS 705/3/2026).

4. DIRECT the SAHRC to report to the Portfolio Committee on Justice on its handling of this matter — specifically why a Chapter 9 institution acknowledged the 'seriousness' of a disability discrimination and whistleblower destitution complaint and then went silent for three months.
 5. CONSIDER providing parliamentary legal assistance for this submission — a destitute, self-represented, formally disabled whistleblower in nine concurrent proceedings, now also facing the threat of defamation proceedings from a corporate legal team for exercising his constitutional right to petition Parliament.
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H — CLOSING STATEMENT

Honourable Speaker, the letter from Deneys Reitz Inc. is well-drafted, technically precise, and strategically designed to place a procedural obstacle between your Office and the substance of my submission. I do not question their right to write it. I do question the implicit invitation it contains: that your Office should treat a governance crisis affecting 1.9 million South Africans as a private matter between an employer and a former employee, and leave it to courts already overwhelmed with ordinary litigation.

My parliamentary submission is not a petition asking Parliament to reverse a court order. It is a formal protected disclosure under PDA Section 8, directed to Parliament as an 'appropriate authority' under Section 8(1)(b). It documents a systemic failure of public institutions. It asks Parliament to exercise the oversight powers the Constitution gave it for exactly this purpose.

The employer has two senior counsel, a director and an associate at a large commercial firm, and the resources of a JSE-listed corporation. I have a laptop, a formal diagnosis of PTSD and severe depression, and the evidence.

"I placed this submission before Parliament as the last institutional mechanism available to me — with the last of the strength I have — trusting that the principles of fairness, dignity, and justice that every person in this country deserves will be honoured."

I remain available to present oral evidence to any Portfolio Committee at any time. I can be reached at the contact details below.

Yours faithfully,

Wilbur William Matthee

RN | BTech General Nursing | PGDip Health Services Management (NQF 8)

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Compliance Institute of Southern Africa (CISA) | Membership Designation: CPrac(SA) — Pending Final Certification Modules

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Ethical Pledge Statement: *While my formal membership designation with the Compliance Institute of Southern Africa (CISA) is pending completion of the final certification modules, I have formally pledged to adhere to the Code of Ethical and Professional Conduct. This commitment informs my clinical and forensic approach to this report, ensuring that all findings are presented with the integrity, independence, and professional care required of the compliance profession.*

CC:

Chairperson — Portfolio Committee on Health (health@parliament.gov.za)

Chairperson — Portfolio Committee on Employment & Labour (labour@parliament.gov.za)

Chairperson — Portfolio Committee on Trade, Industry & Competition (tradeindustry@parliament.gov.za)

Chairperson — Portfolio Committee on Justice & Constitutional Development (justice@parliament.gov.za)

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Nomaindia Xauka, Undersecretary — National Assembly (nxauka@parliament.gov.za)

ENCLOSURES: Consolidated Parliamentary Evidence Portfolio (June 2026) | FR-1 Forensic Evidence Classification Report | Parliamentary Acknowledgment 2 June 2026 | Deneys Letter to Speaker 3 June 2026 | Deneys Letter to Mathee 3 June 2026

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